

SENATE BILL 2329

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Section 8-23-103; Title 16 and Title 67, relative to courts.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 8-23-103(1), is amended by adding the following as a new subdivision (C):

(i) Beginning September 1, 2030, the chief justice of the supreme court shall receive per annum a salary equal to the salary received by a class 1 official pursuant to § 8-23-101 on July 1, 2030. Associate justices of the supreme court shall receive a salary that is five thousand dollars (\$5,000) per annum less than that received by the chief justice.

(ii) Beginning September 1, 2030, the chief judges of the court of appeals and the court of criminal appeals will each receive a salary that is seven thousand five hundred dollars (\$7,500) per annum less than the salary received by the associate justices of the supreme court. Judges of the court of appeals and the court of criminal appeals shall receive a salary that is ten thousand dollars (\$10,000) per annum less than that received by the associate justices of the supreme court effective September 1, 2030.

(iii) Chancellors, circuit court judges, and criminal court judges shall receive a salary that is ten thousand dollars (\$10,000) per annum less than that received by the members of the court of appeals effective September 1, 2030.

(iv) Beginning on July 1, 2031, and on each July 1 thereafter, subdivision (2) must be applied to determine what, if any, adjustments are to be made to the base salaries set out in this subdivision (1)(C).

SECTION 2. Tennessee Code Annotated, Section 16-15-5001(a), is amended by deleting the language "For the purpose of determining the compensation of a general sessions judge, the counties of this state are divided into seven (7) classes as follows:" and substituting:

Prior to September 1, 2030, for the purpose of determining the compensation of a general sessions judge, the counties of this state are divided into seven (7) classes as follows:

SECTION 3. Tennessee Code Annotated, Section 16-15-5001(a), is amended by redesignating the subsection as subdivision (a)(1) and adding the following new subdivision:

(2) Beginning September 1, 2030, for the purpose of determining the compensation of a general sessions judge or juvenile judge, the counties of this state are divided into five (5) classes as follows:

(A) Counties having a population of more than forty-nine thousand (49,000) constitute counties of the first class;

(B) Counties having a population of more than thirty-eight thousand (38,000) but not more than forty-nine thousand (49,000) constitute counties of the second class;

(C) Counties having a population of more than thirty thousand (30,000) but not more than thirty-eight thousand (38,000) constitute counties of the third class;

(D) Counties having a population of more than fifteen thousand (15,000) but not more than thirty thousand (30,000) constitute counties of the fourth class; and

(E) Counties having a population of fifteen thousand (15,000) or less constitute counties of the fifth class.

SECTION 4. Tennessee Code Annotated, Section 16-15-5001(b), is amended by deleting the subsection and substituting:

(b) The class into which a county falls is determined by the 2020 federal census and any subsequent federal census or any special census conducted by the department of economic and community development.

SECTION 5. Tennessee Code Annotated, Section 16-15-5001(c)(3), is amended by redesignating the existing language as subdivision (c)(3)(A) and adding the following as a new subdivision (B):

(B) Beginning September 1, 2030, and for the purposes of this subsection (c) only, the compensation of such judge must be based on what a judge of the next higher classification is to receive on September 1, 2030.

SECTION 6. Tennessee Code Annotated, Section 16-15-5002, is amended by deleting subsection (b) and substituting:

(b) Prior to September 1, 2030, general sessions judges in Class 4 through Class 7 counties, and on or after September 1, 2030, general sessions judges in Class 4 and 5 counties, are considered part-time judges and are not prohibited from the practice of law or other gainful employment while serving as judge, except to the extent the practice or employment constitutes a conflict of interest.

SECTION 7. Tennessee Code Annotated, Section 16-15-5002, is amended by adding the following new subsection:

() Notwithstanding this section to the contrary, on or after September 1, 2030, a judge of the general sessions court in any county, upon adoption of a resolution by two-thirds (2/3) majority vote of the county legislative body, shall devote full time to the duties of such office and is prohibited from the practice of law or any other employment which conflicts with the performance of the judge's duties as judge.

SECTION 8. Tennessee Code Annotated, Section 16-15-5003, is amended by adding the following new subsection:

(l) Compensation for general sessions judges must be calculated pursuant to this section prior to September 1, 2030. Effective September 1, 2030, compensation for general sessions judges must be calculated pursuant to SECTION 9.

SECTION 9. Tennessee Code Annotated, Title 16, Chapter 16, Part 50, is amended by adding the following new section:

(a) Effective September 1, 2030, the following counties shall continue to set the annual salaries for general sessions judges exercising concurrent juvenile jurisdiction and juvenile court judges by private act: Shelby, Davidson, Hamilton, Knox, Montgomery, Tipton, Henderson, Lake, Haywood, and Putnam.

(b) Effective September 1, 2030, except as provided in subsection (a), the annual salary for general sessions judges exercising concurrent juvenile jurisdiction and juvenile court judges is as follows:

(1) For counties in Class 1, equal to the annual salary of a circuit court judge;

(2) For counties in Class 2, five percent (5%) less than the annual salary of a circuit court judge;

(3) For counties in Class 3, twenty percent (20%) less than the annual salary of a circuit court judge;

(4) For counties in Class 4, thirty percent (30%) less than the annual salary of a circuit court judge; and

(5) For counties in Class 5, thirty-five percent (35%) less than the annual salary of a circuit court judge.

(c) Effective September 1, 2030, the annual salary for a general sessions judge not exercising concurrent juvenile jurisdiction and a juvenile court judge not exercising concurrent general sessions jurisdiction is as follows:

(1) For counties in Class 1, equal to the annual salary of a circuit court judge;

(2) For counties in Class 2, five percent (5%) less than the annual salary of a circuit court judge;

(3) For counties in Class 3, twenty-five percent (25%) less than the annual salary of a circuit court judge;

(4) For counties in Class 4, thirty-five percent (35%) less than the annual salary of a circuit court judge; and

(5) For counties in Class 5, forty percent (40%) less than the annual salary of a circuit court judge.

(d) Notwithstanding another law to the contrary, a judge of a general sessions court or juvenile court shall not be paid an annual salary that is greater than the salary paid to a judge of a circuit court.

(e) Notwithstanding another law to the contrary, a general sessions judge who engages in the private practice of law shall not receive an increase in annual salary pursuant to this part if the judge is prohibited by law from engaging in private practice.

(f) The annual compensation, salaries, and annual adjustments established under this part must be adjusted annually in accordance with § 8-23-103.

(g) The compensation and annual adjustment provisions of this part must be construed as minimum levels.

(h) The compensation schedule established by this part is a comprehensive plan, and salary in excess of the annual salary provided by this part shall not be made

available to a general sessions judge or juvenile court judge, unless expressly provided and funded by a private act.

(i) This part does not prohibit a county, by private act, from compensating its general sessions judge or juvenile court judge at levels in excess of what is required by this part. Any private or public act in effect on or after September 1, 2030, that provides greater compensation for a general sessions judge than is required by this part, to the extent of the judge's amount of compensation, prevails over this part.

(j) Notwithstanding another law to the contrary, a judge of a court of general sessions or juvenile court judge shall not be paid compensation based on both this part and the compensation provisions in a private act.

(k) Notwithstanding another law to the contrary, effective September 1, 2030, the annual salary for a general sessions court judge or juvenile court judge who is compensated under this section must be increased over the annual compensation, salary, supplements, and annual adjustments that each judge actually received as of August 31, 2030, and the annual salary shall not be decreased unless the county moves into a lower class on the basis of a prior census.

(l) Notwithstanding another law to the contrary, each general sessions court judge and juvenile court judge in a Class 1-5 county who is compensated under this part shall receive the same compensation as the most highly compensated general sessions court judge or juvenile court judge in the same county classification with the same jurisdiction who is compensated under this part.

(m) On or before June 30, 2030, each general sessions court judge and juvenile court judge shall certify to the administrative office of the courts (AOC) the total amount of the judge's actual compensation as of August 31, 2030, the jurisdictions exercised by the judge, the legal basis for exercising the jurisdiction, and whether the judge is

compensated under this section or under a public or private act. A certification of the county's chief financial officer of the actual compensation of the judge as of August 31, 2030, or other verifiable proof of the judge's actual compensation must be included in the information submitted by the judge to the AOC. When all judges have certified the required information to the AOC, the AOC shall report to each general sessions court judge the amount of compensation to be paid to the judge beginning on September 1, 2030, based on the information provided by the judge. Thereafter, when a new court is created, a new judge takes office, or any similar change occurs, or upon the completion of a new census and reclassification of any county, the AOC shall report the amount of compensation to be paid to any judge affected by the change.

(n)

(1) Notwithstanding another law to the contrary, excluding counties listed in subsection (a) that set the salary for general sessions judges exercising concurrent juvenile jurisdiction by private act, the general sessions and juvenile court costs must be set and collected in the amount prescribed by general law and public or private act.

(2) Effective September 1, 2030:

(A) There is levied a county privilege tax on litigation of one dollar (\$1.00) in each civil, criminal, juvenile, or traffic case initiated in general sessions court or juvenile court in a Class 1 county;

(B) There is levied a county privilege tax on litigation of two dollars (\$2.00) in each civil, criminal, juvenile, or traffic case initiated in general sessions court or juvenile court in a Class 2 county;

(C) There is levied a county privilege tax on litigation of three dollars (\$3.00) in each civil, criminal, juvenile, or traffic case initiated in general sessions court or juvenile court in a Class 3 county;

(D) There is levied a county privilege tax on litigation of four dollars (\$4.00) in each civil, criminal, juvenile, or traffic case initiated in general sessions court or juvenile court in a Class 4 county; and

(E) There is levied a county privilege tax on litigation of five dollars (\$5.00) in each civil, criminal, juvenile, or traffic case initiated in general sessions court or juvenile court in a Class 5 county.

(3) The county privilege tax on litigation is due and must be collected even if the party, litigant, defendant, or juvenile does not appear in court. From such amount, the county shall use the funds for the exclusive and sole purpose of defraying the compensation, salary, and annual adjustments of the general sessions judges and juvenile court judges.

(o) Each general sessions judge and juvenile court judge, whether full-time or part-time, continues to exercise the jurisdiction the judge is vested with and exercising on August 31, 2030, unless changed or modified as allowed by this chapter.

SECTION 10. This act takes effect upon becoming a law, the public welfare requiring it.